

Minnesota Digital Due Process Act

Capitol Submission Kit

Human Accountability in Automated Government Decision-Making

1. Executive One-Page Summary

Government agencies increasingly use AI and predictive systems in decision-making.
This proposal ensures no individual faces material adverse government action solely due to automated outputs.
It preserves AI use while requiring human review and independent evidence.

2. Legislative Brief Summary

The bill extends constitutional due process into automated systems.
It does not restrict AI use.
It requires notice, human review, independent evidence, and appeal rights for consequential actions.

3. Core Standard

No government agency may impose material adverse action solely on automated prediction, algorithmic classification, or AI output.
Human review and independent evidence are required.

4. Real-World Case Scenarios

1. Automated fraud flag leads to benefit denial without review.
2. Predictive policing tool triggers investigation based on risk score.
3. AI eligibility system rejects application without human verification.
4. Algorithmic classification results in administrative penalty.

This bill requires human confirmation and evidentiary support.

5. Stakeholder Overview

Support: civil liberties groups, transparency advocates, constitutional scholars.
Concerns: administrative burden, workflow changes, implementation cost.
Technology vendors: neutral to cautious.

6. Constitutional Basis

Grounded in due process and equal protection principles.
Ensures accountability remains human in governmental decisions.

7. Core Principle

Technology may assist decision-making.
Constitutional responsibility must remain human.